

Vendor Disclosure & Contract Checklist — Queensland

Your obligations as a seller under Queensland's new disclosure regime.

Correct as at July 2026. General information only, not legal advice. Your Seller Disclosure Statement must be prepared with a solicitor or licensed conveyancer — this checklist helps you gather what they'll need, not replace their advice.

Section 1 — Understanding Your New Disclosure Obligation

- ☐ [] **Know this is a major, relatively recent change.** Since 1 August 2025, Queensland requires sellers of freehold property to give buyers a **Seller Disclosure Statement (Form 2)** and prescribed certificates **before the buyer signs the contract** — a fundamental shift from the state's historical "buyer beware" position.
- ☐ [] **Understand the statement must be true at the time it's given.** The information in the disclosure statement must be accurate as at the date you provide it, not just at some earlier point.
- ☐ [] **Know the consequence of getting this wrong.** If you fail to provide a valid disclosure statement, or it's inaccurate or incomplete in a material way, the buyer can **terminate the contract at any time before settlement** and reclaim their **full deposit, plus any accrued interest**.
- ☐ [] **Understand you cannot contract out of this** — any attempt to waive or exclude the disclosure requirements is void, regardless of what the contract says.
- ☐ [] **Know that "material matter" is broad but has a specific carve-out.** Courts are expected to interpret material matters in a buyer-friendly way, though rates and water charges information specifically sits outside the material-matter termination right.

Section 2 — Information to Gather for Your Solicitor/Conveyancer

- ☐ [] **Title details and any encumbrances** — mortgages, easements, covenants affecting the land.
- ☐ [] **Zoning and planning information.**
- ☐ [] **Neighbourhood dispute matters** — any relevant orders or applications under the Neighbourhood Disputes (Dividing Fences and Trees) Act 2011.
- ☐ [] **Environmental issues** — known contamination, heritage listing, or similar matters.
- ☐ [] **Body corporate records**, if applicable — recent AGM minutes, financials, sinking fund details, and known disputes or special levies.
- ☐ [] **Building approvals and known building work history.**
- ☐ [] **Any other material matters you're aware of**, even if not immediately obvious — full and frank disclosure protects you from post-settlement disputes and termination risk.

Section 3 — How to Provide the Disclosure

- ☐ [] **Understand disclosure can be given electronically** — physical delivery isn't required; secure links, cloud storage, or e-signature platforms are all permitted methods.
- ☐ [] **Confirm timing carefully with your solicitor.** The disclosure statement and certificates must reach the buyer **before they sign** — not after, and not "at settlement."
- ☐ [] **If selling via an option arrangement, get specific advice.** The disclosure scheme has particular rules for option-based sales, and options signed before 1 August 2025 may not attract the new scheme — this is a nuance worth confirming with your solicitor if relevant to your sale.

Section 4 — Underquoting and Agent Obligations

- ☐ [] **Understand your agent's obligations under the Property Occupations Act 2014**, including providing a genuine, reasonable price estimate as part of your agency agreement.
- ☐ [] **Don't ask your agent to advertise a misleadingly low price to generate interest** — beyond the practical risk of buyer distrust, this undermines the transparency the new disclosure regime is specifically designed to promote.

Section 5 — Final Checks Before Going to Market

- ☐ [] **Confirm your Seller Disclosure Statement and all prescribed certificates are ready** before your first open home or auction date — this is now a genuine prerequisite to a valid sale process, not paperwork to finalise later.
- ☐ [] **Cross-check the disclosure statement against your own knowledge of the property** — flag any inconsistency with your solicitor immediately.
- ☐ [] **Keep a copy of everything provided to buyers.**

Quick Reference — QLD Vendor Disclosure Essentials

Requirement	Key Detail
Seller Disclosure Statement (Form 2)	Mandatory before the buyer signs, since 1 August 2025
Governing legislation	Property Law Act 2023 (Qld)
Missing/defective disclosure	Buyer can terminate anytime before settlement, full deposit refund
Delivery method	Physical or electronic — both permitted
Contracting out	Not permitted — any waiver attempt is void

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